

VERIFIED PETITION FOR EXPUNGEMENT OF RECORDS OF CONVICTION (W.S. SEC. 7-13-1502)

IN THE DISTRICT COURT OF THE JUDICIAL DISTRICT
COUNTY OF, STATE OF WYOMING

(Caption this petition for the court that convicted you. The convicting court, its judicial district, its county and the docket number are copied from your judgment and sentence; nothing on those lines is written for you.)

Docket / Criminal Case No.:

IN THE MATTER OF THE EXPUNGEMENT OF THE RECORDS OF CONVICTION OF:

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1962-12-31

Mailing address: 1188 Upper Notch Crossing Road, Apartment 14B, Cheyenne, Wyoming 82009-2214

Telephone: (307) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

VERIFIED PETITION FOR EXPUNGEMENT OF RECORDS OF CONVICTION

1. Petitioner Maria-Alejandra O'Shaughnessy-Whitfield petitions this Court under Wyo. Stat. Sec. 7-13-1502 to expunge the records of the felony conviction identified below, entered in this Court.

2. THE CONVICTION. Copied from the judgment and sentence:

Felony offense, worded exactly as the judgment and sentence states it:

.....
.....

Wyoming statute section of conviction, as the judgment states it:

.....

Date of conviction / date judgment and sentence entered:

.....

Where more than one felony is included, state that they arose out of the same occurrence or the same related course of events, and identify each:

.....
.....

3. THE TEN-YEAR PERIOD. Section 7-13-1502 requires that at least ten (10) years have passed since the expiration of the terms of the sentence, including any period of probation.

Date all terms of the sentence expired, including any probation:

.....

4. PROGRAMS AND RESTITUTION. Any court-ordered program is complete and any court-ordered restitution has been paid in full.

Date any court-ordered program was completed (or state that none was ordered):

.....

Restitution ordered, and the date it was paid in full (or state that none was ordered):

.....

5. ELIGIBILITY ALLEGATIONS PETITIONER MUST MAKE PERSONALLY.

These three are left for you and, where you have one, your attorney. The platform does not assert them, because each depends on your whole record or on a judgment reserved to the Court.

(a) That Petitioner has not previously pled guilty or nolo contendere to, and has not been convicted of, any felony other than the felony or felonies in this petition, anywhere:

.....

(b) That the felony is not an offense excluded from expungement by Sec. 7-13-1502:

.....

(c) That Petitioner does not represent a substantial danger to himself or herself, to any identifiable victim, or to society:

.....

(d) That Petitioner has not previously received an expungement of records of conviction under Sec. 7-13-1502, which permits one in a lifetime:

.....

6. RELIEF REQUESTED. Petitioner asks the Court to enter an Order for Expungement of the records of conviction identified above, directing that the court files be sealed and available for inspection only by order of the Court, and directing that a certified copy of the Order be transmitted to the Wyoming Division of Criminal Investigation.

7. This petition is verified by Petitioner as Sec. 7-13-1502 requires. The Verification page accompanies it.

DATE SIGNATURE OF PETITIONER

(You sign and date this petition yourself. Nothing on this page is signed or dated for you.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Cheyenne, Wyoming 82009-2214

TELEPHONE: (307) 555-0199 ext. 4417 EMAIL:
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

PROPOSED ORDER FOR EXPUNGEMENT

IN THE DISTRICT COURT OF THE JUDICIAL DISTRICT
COUNTY OF, STATE OF WYOMING

Docket / Criminal Case No.:

IN THE MATTER OF THE EXPUNGEMENT OF THE RECORDS OF CONVICTION OF
Maria-Alejandra O'Shaughnessy-Whitfield

ORDER FOR EXPUNGEMENT

THIS DOCUMENT IS A PROPOSED ORDER. It is unexecuted. It records no finding the Court has made, and nothing in it asserts that the Court has acted. It is prepared so that it is available to the Court for signature if the Court grants the petition.

THIS MATTER came before the Court on the verified Petition of Maria-Alejandra O'Shaughnessy-Whitfield for expungement of the records of conviction under Wyo. Stat. Sec. 7-13-1502.

THE COURT FINDS (findings to be made by the Court):

.....
.....

IT IS THEREFORE ORDERED that the records of conviction identified in the Petition are expunged under Wyo. Stat. Sec. 7-13-1502.

IT IS FURTHER ORDERED that the files and records of this Court in this matter be SEALED, and be available for inspection only upon order of this Court.

IT IS FURTHER ORDERED that the Clerk transmit a certified copy of this Order to the Wyoming Division of Criminal Investigation.

IT IS FURTHER ORDERED that, as Wyo. Stat. Sec. 7-13-1502(m) provides, this expungement restores to Petitioner any rights that were removed as a result of the conviction.

DATED this day of, 20....

.....
DISTRICT JUDGE

(The date of entry and the judge's signature are the Court's. They are left blank.)

VERIFICATION OF PETITIONER

Docket / Criminal Case No.:

VERIFICATION

Wyoming Statute Sec. 7-13-1502 requires the petition to be VERIFIED by the petitioner. This page is that verification. It is not signed for you.

STATE OF

COUNTY OF

I, Maria-Alejandra O'Shaughnessy-Whitfield, being first duly sworn, state that I am the Petitioner in this matter; that I have read the foregoing Verified Petition for Expungement of Records of Conviction; and that the matters stated in it are true and correct to the best of my knowledge, information and belief.

.....

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner

SUBSCRIBED AND SWORN TO before me this day of, 20.....

.....

Notary Public / Officer authorized to administer oaths

My commission expires:

ASK THE CLERK FIRST. Verification is required by statute. Whether THIS court requires the verification to be sworn before a notary is that court's practice, and the committed record does not settle it. Ask the clerk of the convicting court before you sign.

CERTIFICATE OF SERVICE

Docket / Criminal Case No.:

CERTIFICATE OF SERVICE

Section 7-13-1502 requires the verified petition to be SERVED ON TWO RECIPIENTS and proof of service filed: the prosecuting attorney, and the Wyoming Division of Criminal Investigation. The 90-day objection window runs from service on the prosecuting attorney.

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that I served a true and correct copy of the Verified Petition for Expungement of Records of Conviction as follows:

1. ON THE PROSECUTING ATTORNEY

Name and office of the prosecuting attorney (the county and prosecuting attorney for the county of conviction):

.....

Address served:

.....

Manner of service:

Date served:

2. ON THE WYOMING DIVISION OF CRIMINAL INVESTIGATION

Address served (confirm the current address for service with the Division before sending):

.....

Manner of service:

Date served:

.....

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner

Date:

(The service dates are written when service is actually made. Nothing on this page is dated for you. File this certificate with the court as your proof of service.)

FILING INSTRUCTIONS

This packet is prepared for asking the Wyoming court that convicted you to expunge the records of that felony conviction under Wyo. Stat. Sec. 7-13-1502.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHERE THIS IS FILED. File the verified Petition and the proposed Order for Expungement with the CLERK OF THE CONVICTING COURT - the court that entered your felony judgment and sentence. That is the destination the committed Wyoming record and the compiled Wyoming profile both state for a Sec. 7-13-1502 petition.

WHAT IT COSTS. The filing fee is \$300.00 per petition. That figure is stated for this exact route by the committed Wyoming legal-design record and, keyed to the section, by the compiled Wyoming profile: 'Adult felony conviction under 7-13-1502 \$300'. Where you are asking to expunge more than one petition's worth of records, the fee is per petition.

ABOUT A FEE WAIVER. No fee-waiver procedure is established for Sec. 7-13-1502 in the records this packet is built from. That is not the same as there being none. ASK THE CLERK OF THE CONVICTING COURT - the same clerk who takes the filing - whether that court has an indigency or fee-waiver procedure, before you pay.

WHO YOU SERVE. Two recipients, and proof of service is filed with the court:

- (1) THE PROSECUTING ATTORNEY for the county of conviction; and
- (2) THE WYOMING DIVISION OF CRIMINAL INVESTIGATION.

The prosecuting attorney - not you - notifies any identifiable victims.

THE 90-DAY WINDOW. The prosecuting attorney has NINETY (90) DAYS to object, and no order may be granted before that window closes. The window runs from service on the prosecuting attorney, which is why the date of service matters and why you fill it in on the certificate of service when service is actually made. If no objection is filed, the court may enter the order summarily on finding eligibility.

WHAT THE ORDER DOES. On a grant the court seals its file, and a certified copy of the order is transmitted to the Division of Criminal Investigation. Under Sec. 7-13-1502(m) the expungement restores any rights that were removed as a result of the conviction.

WHAT THIS PACKET WILL NOT TELL YOU, AND WHY. It does not tell you that you may answer an inquiry as though the conviction did not occur. That entitlement appears in Wyo. Stat. Sec. 7-13-1401(f), which by its own words is confined to the NON-CONVICTION route, and it does not appear in Sec. 7-13-1502. The committed record says so in terms. Do not state that the conviction did not happen.

ONE IN A LIFETIME. Section 7-13-1502 permits one expungement of records of conviction in a lifetime. Spend it deliberately.

VERIFICATION. The petition must be verified by you. Ask the clerk of the convicting court whether that court requires the verification sworn before a notary; the committed record does not settle it.

WYOMING'S OWN SELF-HELP PAGE. The Wyoming Judicial Branch publishes an expungement page and an Expungement Handout at wyocourts.gov (Legal Help by Topic - Expungements). It does not publish a complete mandatory petition packet, which is why this petition is drafted rather than filled.

WHEN TO STOP AND GET A LAWYER INSTEAD.

- The felony may be on the Sec. 7-13-1502 exclusion list. The list is long and statute-specific and is not encoded here; have it checked.
- You have any other felony plea, nolo plea or conviction anywhere. The other-felony bar looks at your entire record.
- Any firearm use or attempted use, including where you believe a Title 23 carve-out applies.
- Any offense subject to sex offender registration under Secs. 7-19-302(g) through (j).
- You have already received one expungement under Sec. 7-13-1502.
- You completed a felony DEFERRAL rather than being convicted. There is no Wyoming expungement route for that, and this packet will not pretend otherwise: Sec. 7-13-1401(a)(i) is barred by the deferral disposition itself, Sec. 7-13-1502 requires a conviction you do not have, and Sec. 7-13-307 forbids construing Secs. 7-13-301 through 7-13-306 to authorize expunging the record. Where the Division of Criminal Investigation record misdescribes the disposition, a W.S. Sec. 7-19-109 application to purge, modify or supplement inaccurate or incomplete criminal history record information is the only thing available. It corrects the record to say what actually happened; it is not expungement, and it is not a route this packet offers.
- The prosecuting attorney files an objection, or the court sets a contested hearing.
- An identifiable victim is likely to object.
- Facts indicating human trafficking or coercion, which route to the Sec. 6-2-708 vacatur outside this track.
- Immigration consequences.
- Federal, tribal or out-of-state records, which Wyoming relief does not reach.

DOCUMENTS TO OBTAIN BEFORE YOU FILE, AND WHO HAS THEM.

- Certified judgment and sentence for the felony conviction - the clerk of the convicting court.
- Proof that probation and any court-ordered program were completed, showing the date the terms of sentence expired - the supervising probation office, or the clerk of the convicting court. The ten-year clock runs from that date.
- Proof that court-ordered restitution was paid in full - the clerk of the convicting court.
- Your Wyoming DCI criminal history record - the Wyoming Division of Criminal Investigation, Criminal Records Unit. It is the only reliable way to check the other-felony bar against your whole record.